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Case Number: 25STCV11833 Hearing Date: September 17, 2026 Dept: 224

Topanga Oasis v. State of California

TENTATIVE RULING

Plaintiff's Motion for Relief from Waiver of Jury Trial is GRANTED. Trial set for October 11, 2027 in this matter, will be by jury.

ANALYSIS

Introduction

On April 23, 2025, Plaintiff Topanga Oasis, LLC filed the Complaint in this action.

On January 29, 2026, Plaintiff filed the First Amended Complaint.

On January 6, 2026, the Court held the initial Case Management Conference. The Court's minute order of that date states that "Jury fees are not posted by any party in compliance with C.C.P. Section 631 at the time of case management conference hearing" and the Court set trial for October 11, 2027 as a non-jury trial.

Later that same day, Plaintiff filed its Notice of Posting Jury Fees, reflecting payment of the \$150 nonrefundable advance jury fee.

On January 27, 2026, Plaintiff filed the instant Motion.

No opposition has been filed.

Legal Standard

A party must pay jury fees no later than 365 calendar days after filing of the initial complaint. (CCP § 631, subds. (b) and (c).) The failure to post jury fees constitutes a waiver of that right. (CCP § 631(f)(5)&(6).)

California Code of Civil Procedure section 631, subdivision (g) provides courts with discretion to allow a jury trial despite there being a waiver of trial by jury. “A trial court abuses its discretion as a matter of law when relief has been denied where there has been no prejudice to the other party or to the court from an inadvertent waiver.” (Tesoro del Valle Master Homeowners Assn. v. Griffin (2011) 200 Cal.App.4th 619, 638.) Policy favors the court using its discretion to proceed with a jury trial. (Bishop v. Anderson (1980) 101 Cal.App.3d 821, 823.)

“Where the right to jury is threatened, the crucial focus is whether any prejudice will be suffered by any party or the court if a motion for relief from waiver is granted. [Citations.] A trial court abuses its discretion as a matter of law when ‘...relief has been denied where there has been no prejudice to the other party or to the court from an inadvertent waiver. [Citations.]’” (Wharton v. Superior Court (1991) 231 Cal.App.3d 100, 104.) “The mere fact that trial will be by jury is not prejudice per se.” (Johnson-Stovall v. Superior Court (1993) 17 Cal.App.4th 808, 811 [prejudice not shown by need to prepare motions in limine, enlarged exhibits, and jury instructions unless inadequate time also shown].) Rather, the prejudice that must be shown is “prejudice from the granting of relief from waiver not prejudice from the jury trial.” (Winston v. Superior Court (1987) 196 Cal.App.3d 600, 602, 603 [fact that it takes longer to try a jury case is not prejudice from granting relief from waiver].)

Discussion

Although captioned as a “Motion for Jury Trial,” the motion is in substance a motion for relief from waiver of jury trial under Code of Civil Procedure section 631, subdivision (g), and the Court treats it as such. Plaintiff also invokes section 473(b), but the Court’s discretion under section 631(g) is sufficient to resolve the Motion, and relief under section 631(g) requires a lesser showing than section 473(b).

The Court’s January 6, 2026 minute order found that jury fees were not posted by any party in compliance with section 631 as of the time of the Case Management Conference, and set the matter for a non-jury trial. (Collins Decl. ¶ 3, Ex. B.)

The Court notes that section 631, subdivision (c) provides that where the initial case management conference is scheduled less than 365 days after the filing of the initial complaint, jury fees are “due on or before the date scheduled for the initial case management conference in the action.” (CCP § 631(c).) The initial Case Management Conference here was held on January 6, 2026, and Plaintiff posted its \$150 nonrefundable advance jury fee that same day. (Collins Decl. ¶ 9, Ex. C.)

Any waiver was inadvertent. Plaintiff demanded a jury trial in its Complaint, demonstrating its intent from the outset to try this matter to a jury. (Collins Decl. ¶¶ 2, 4, Ex. A.) Counsel declares that the failure to calendar and complete the fee payment before the conference was the result of an administrative oversight in his office and was not intentional or deliberate. (Collins Decl. ¶¶ 5-7.)

Plaintiff also acted promptly. Counsel posted the fees the same day he learned at the conference that the matter had been set for a non-jury trial, and filed this Motion three weeks later. (Collins Decl. ¶¶ 8-9, Ex. C.)

No prejudice will result from granting relief. Trial is set for October 11, 2027 – well over a year from the filing and hearing of this Motion – leaving the parties ample time to prepare for a jury trial and eliminating any possibility of unfair surprise. (Collins Decl. ¶ 10.) Discovery remains ongoing, and no party has substantially altered its trial preparation in reliance on a bench trial. (Collins Decl. ¶ 11.) The mere fact that trial will be by jury is not prejudice per se. (Johnson-Stovall, supra, 17 Cal.App.4th at p. 811.) Rather, the prejudice that must be shown is “prejudice from the granting of relief from waiver not prejudice from the jury trial.” (Winston, supra, 196 Cal.App.3d at pp. 602-603.)

The Motion is unopposed, and no party has identified any prejudice arising from proceeding to a jury trial. Given the strong policy favoring resolution of doubts in favor of preserving the constitutional right to a jury trial (Bishop, supra, 101

Cal.App.3d at p. 823), relief is warranted.

Accordingly, Plaintiff's Motion for Relief from Waiver of Jury Trial is GRANTED. The trial in this matter, currently set for October 11, 2027, is designated as a jury trial.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at SMCDept224@lacourt.org indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.